



INDIAN LAW & DEALMAKING · 18 SEPTEMBER 2026

Five moves shaping the board now.

- › Supreme Court clears NSE settlement
- › SEBI expands common reporting
- › Supreme Court sets attribution test
- › Supreme Court limits appeal clock
- › Bombay High Court quashes IP suspension

SWIPE →



SUPREME COURT · CAPITAL MARKETS

01 / 05

Supreme Court Clears NSE Settlement In Co-Location Case

On September 18, 2026, the Supreme Court approved the settlement between the National Stock Exchange and SEBI, ending a nearly decade-long dispute involving allegations of preferential trading access. Under the consent mechanism, NSE paid Rs 1,491.21 crore to resolve the proceedings.

THE READ

This final closure removes major regulatory overhang just as the exchange executes its primary offering plans. Dealmakers can now price market risk with heightened legal certainty.



SEBI · REGULATORY COMPLIANCE

02 / 05

SEBI Expands Common Reporting Platform For Clearing Members

On September 17, 2026, SEBI announced the phased extension of the Samuhik Prativedan Manch reporting mechanism to clearing members who are also stock brokers. The system starts on September 30, 2026, covering 14 compliance reports across multiple clearing corporations.

THE READ

The platform significantly cuts duplicate filings and lowers compliance overhead for dual-registered intermediaries. Operational teams should audit reporting workflows ahead of the rollout.



SUPREME COURT · CORPORATE CRIMINAL LIABILITY

03 / 05

Supreme Court Establishes Three-Stage Attribution Test For Companies

On September 7, 2026, in *Sanofi India Ltd. v. Central Bureau of Investigation*, the Supreme Court held that natural persons do not need to be named in a chargesheet for corporate prosecution. The bench laid down a three-stage governance inquiry to attribute individual intent to a company.

THE READ

White-collar defense strategies relying on unnamed officers will fail at the threshold. Boards must immediately review delegation matrices and transaction-level governance records.



SUPREME COURT · INSOLVENCY LAW

04 / 05

Supreme Court Clarifies NCLAT Appeal Limitation Period Starts From Order Date

In *Employee's Provident Fund Organization v. CoC of Vas Data Services Pvt. Ltd.*, the Supreme Court ruled that the limitation period for challenging an NCLAT order runs from the date the order is provided under rules. It does not wait for the date a certified copy is obtained.

THE READ

Litigants must act swiftly on electronic pronouncements without waiting for physical document formalities. Appellate timelines are now strictly anchored to the initial provision date.



Bombay High Court Quashes Insolvency Professional Suspension Order

On August 25, 2026, in *Jitender Kumar Jain v. Union of India*, the Bombay High Court quashed an IBBI Disciplinary Committee order suspending an insolvency professional for three months. The court found that the show-cause notice relied on extraneous material outside the investigation.

THE READ

Regulators face stricter judicial oversight regarding procedural fairness and the scope of disciplinary notices. Practitioners can challenge overreaching disciplinary actions based on extraneous material.



THE THROUGH-LINE

Recent judicial and regulatory actions emphasize procedural strictness across Indian corporate law. Courts are simultaneously enforcing tighter attribution standards for corporate crimes and streamlining regulatory hurdles for market infrastructure. Stakeholders must align internal governance frameworks with these shifting compliance mandates.





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